



Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City, Metro Manila

TWENTIETH CONGRESS
First Regular Session

HOUSE BILL NO. 5696



Introduced by Representative Howard A. Guintu

EXPLANATORY NOTE

Section 26, Article II of the 1987 Constitution provides that “the State shall guarantee equal access to opportunities for public service, and prohibit political dynasties as may be defined by law.” In the same spirit, Article IX-C, Section 2 entrusts the Commission on Elections (COMELEC) with the mandate to enforce and administer all laws related to the conduct of elections, ensuring that every electoral exercise is free, orderly, honest, peaceful, and credible.

These constitutional provisions underscore that the right of the people to make informed political choices must be protected. However, the digital landscape has dramatically changed the way information is disseminated and consumed during elections. The rise of social media, the internet, and artificial intelligence has given way not only to new opportunities for political engagement but also to new challenges such as the unchecked spread of false information, manipulation of public opinion, and the creation of deepfakes and AI-generated propaganda that distort facts and confuse voters.

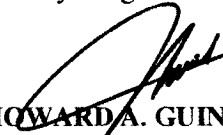
While existing laws such as the Omnibus Election Code and the Fair Elections Act provide the framework for campaign conduct and election propaganda, they were crafted in a time before the digital revolution. Although the COMELEC has taken progressive steps such as issuing Resolution No. 10730 for the 2022 Elections and Resolution No. 11064 for the 2025 Elections, these measures remain administrative in nature and therefore limited in their scope and enforcement power.

This bill seeks to correct these gaps by institutionalizing the regulation of digital and social media platforms during the election period. It aims to empower the COMELEC with sufficient authority to monitor and manage online election propaganda, verify and authenticate sponsored content, and prohibit the use of artificial intelligence for the creation and dissemination of misleading materials.

Thus, this measure will serve as a safeguard to ensure that technology strengthens rather than undermines the integrity of our electoral process. It seeks to promote transparency, accountability, and truth in digital campaigning, enabling voters to make informed choices based on facts, not deception.

In this effect, the bill embodies a theory of change rooted in trust and accountability: that by regulating the use of emerging technologies in elections, we protect not only the integrity of the vote but also the faith of the people in democracy itself.

In view of the foregoing, the passage of this bill is earnestly sought.



HOWARD A. GUINTU
Representative, First District of Capiz



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AN ACT
PROVIDING FOR THE FAIR USE OF SOCIAL MEDIA, ARTIFICIAL INTELLIGENCE
AND INTERNET TECHNOLOGY FOR THE HOLDING OF FREE, ORDERLY, HONEST,
PEACEFUL AND CREDIBLE ELECTIONS

Be it enacted by the Senate and House of Representatives of the Philippines in Congress assembled:

SECTION 1. *Short Title.* This Act shall be known as the "*Social Media, Artificial Intelligence and Internet Technology Regulation for Fair Elections Act*".

SEC. 2. *Declaration of Policy.* - The State shall, during the election period, supervise and regulate the privileges granted under franchises or permits for the operation of the internet and social media communication or information, as well as the use of artificial intelligence, and provide for their prohibition and punishment in case of misuse, to guarantee equal opportunity for public service, including access to internet and social media time and space; the equitable right to reply, for public information campaigns and fora among candidates; and assure free, orderly, honest, peaceful and credible elections.

The State shall ensure that candidates for any public office shall be free from any form of online harassment and discrimination.

SEC. 3. *Definition of Terms.* - As used in this Act:

(a) *Artificial Intelligence Technology* refers to computer systems or machines that simulate human intelligence processes with focus on learning, reasoning, problem solving, perception, use of language, and image manipulation influencing real or virtual environments;

(b) *Astroturfing* refers to a practice designed to mask the source of a message so that it appears as though it has broad support from grassroots participants, rather than originating from a small group or organization.

(c) *Blog and collective blog* refer to websites on which an individual or group of users, respectively, record news, opinions, and information, in varying degrees of regularity. A "micro-blog" refers to a blogging format which allows users to exchange small elements of content - referred to variously as posts, entries or status updates - such as short sentences, individual images, or links to video material uploaded to the internet;

(d) *Bots (abbreviation for robot/s)* refers to a software program or computer system designed to perform automated, repetitive, pre-defined tasks on the internet often used on social media to simulate or imitate human user behavior.

(e) *Candidate* refers to any person seeking an elective public office, who has a certificate of candidacy, and who has not died, withdrawn the certificate of candidacy, nor the certificate of candidacy denied due course or cancelled, or has been otherwise disqualified before the start of the campaign period for which the certificate of candidacy was filed: Provided, That, unlawful acts or omissions applicable to a candidate shall take effect only upon the start of the aforesaid campaign period. It also refers to any registered national, regional, or sectoral party, organization or coalition thereof that has filed a manifestation of intent to participate under the party-list system, which has not withdrawn the said manifestation, or which has not been disqualified before the start of the campaign period;

(f) *Cheappakes* refer to forms of visual disinformation for which authentic images or videos are re-contextualized to deliberately alter their meaning.

(g) *Contractors and business firms* refer to persons, natural or juridical, or firms to whom the electoral expenditure is paid or due for payment in accordance with Section 112 of the Omnibus Election Code, including media entities, media outlets, internet and social media platforms, advertising agencies, public relations firms and other intermediaries, event organizers, talent endorsers and their managers, digital influencers, and printing press for the purpose of entering into political advertisement contracts. "Social media associates" refer to contractors whose primary duty is to promote the election or defeat of any candidate through social media interactions and engagement;

(h) *Coordinated inauthentic behavior* refers to deliberate and coordinated actions carried out by individuals, groups, or organizations to deceive or mislead the public by spreading false, misleading, or manipulated information online, typically involving automated or semiautomated means.

(i) *Deepfakes* refer to digitally manipulated images, videos, or audio files created using artificial intelligence to fabricate realistic representations of people, events, or statements and falsely make it appear that an action, statement, or event transpired but did not occur in reality.

(j) *Disinformation* refers to false information that is spread, or information that is based on fact, but removed from its original context and is maliciously manipulated, and used in a partisan political activity or digital election campaign, with the intent to mislead, harm, or manipulate public opinion or voter behavior.

(k) *Election campaign or partisan political activity* refers to an act designed to promote the election or defeat of a particular candidate or candidates to a public office, and shall include any of the following:

(i) Forming organizations, associations, clubs, committees or other groups of persons for the purpose of soliciting votes and/or undertaking any campaign for or against a candidate;

(ii) Creating on any social media platform, user groups or community pages, for the purpose of conducting campaigns or related partisan political activity;

(iii) Holding political caucuses, conferences, meetings, rallies, parades or other similar assemblies for the purpose of soliciting votes and/or undertaking any campaign or propaganda for or against a candidate;

(iv) Making speeches, announcements or commentaries, or holding interviews for or against the election of any candidate for public office;

(v) Publishing, displaying or distributing campaign literature or materials designed to support or oppose the election of any candidate; or

(vi) Directly or indirectly soliciting votes, pledges or support for or against any candidate.

(l) *Electoral ads and electoral posts* refer to advertisements and social media posts that have for their primary purpose the promotion of the victory or defeat of a candidate;

(m) *E-rally* refers to a rally under Article X of the Omnibus Election Code which is conducted for an online audiences:

(n) *Fake news* as used herein, is the colloquial, collective, and common term used by ordinary Filipinos to refer to misinformation, malinformation, or disinformation deliberately presented as legitimate news and disseminated through digital platforms, traditional media, or other communication channels, with the intent to deceive, mislead, or manipulate public opinion or voter behavior.

(o) *Fake social media accounts* are social media profiles created using false, misleading, or inauthentic identities, or otherwise manipulated to deceive users into believing they are interacting with genuine individuals or entities, often with the intent to mislead, manipulate, or influence public opinion or voter behavior.

(p) *False amplifiers* refer to entities or mechanisms that artificially increase the visibility or reach of digital partisan or political messages or narratives, typically through the use of bots, fake accounts, or organized networks on social media platforms or other online channels.

(q) *Hyperactive users* refer to inauthentic individuals who engage in disproportionately high levels of activity on online platforms, including posting, sharing, or interacting with content at a significantly higher rate than the average user, with the intent to distort or manipulate online discourse or influence public perception using misinformation, or disinformation.

(r) *Internet technology* refers to hardware, software, protocols, and services that enable the transmission, processing, and exchange of data and information over the web;

(s) *Livestreaming* refers the live broadcasting of an event over the internet;

(t) *Microtargeting* refers to a form of targeting online advertisements that uses recent technological developments to analyze a person's online usage, to preferentially serve advertisements and other information that specifically reflect that individual user's preferences and personality;

(u) *Misinformation* refers to false or inaccurate information that is spread in a partisan political activity or digital election campaign, regardless of whether there is intent to mislead.

(v) *Online campaigning* refers to the use of the internet to distribute campaign propaganda. This includes text-only posts on social media, pictures, audio clips, and video clips, regardless of duration, and all combinations of such formats;

(w) *Party* refers to either a political party, whether national or sectoral party, or a coalition of parties, and party-list organizations duly registered/accredited with the Commission on Elections (COMELEC);

(x) *Podcast* refers to a radio program that is stored in a digital form that can be streamed live and downloaded from the internet and stored and played on a computer or on a cell phone.

(y) *Political advertisement or election propaganda* refers to any matter broadcasted, published, printed, displayed or exhibited, in any medium, which contains the name, image, logo, brand, insignia, initials, and other symbol or graphic representation that is capable of being associated with a candidate, and is exclusively intended to draw the attention of the public or a segment thereof to promote or oppose, directly or indirectly, the election of the said candidate or candidates to a public office. In broadcast media, political advertisements may take the form of spots, appearances on television shows and radio programs, live or taped announcements, teasers, and other forms of advertising messages or announcements used by commercial advertisers. Political advertising includes endorsements, statements, declarations, or information graphics, appearing on any internet website, social network, blogging site, and micro-blogging site, which - when taken as a whole - has for its principal object the endorsement of a candidate only, or which were posted in return for consideration or are otherwise capable of pecuniary estimation;

(z) *Social media* refers to the collective of online communication channels, including websites and applications, that enable users to create and share content, collaborate, and interact with each other. For purposes of this Act, video sharing sites which allow users to post comments on individual entries shall be considered as falling within the broad category of "social media";

(aa) *Social media account* refers to a user's personalized access to a social networking site or application, typically using a username and password combination." A social media account allows a user to interact with other users on the same social networking site;

(bb) *Social media associates* refer to contractors whose primary duty is to promote the election or defeat of any candidate through social media interactions and engagement; and

(cc) *Social media post* refers to any text, audio, or graphic content - or any combination thereof published online using a social media account.

(dd) *Soft fakes* refers to a type of media manipulation that involves subtle and often imperceptible alterations to content, such as editing photos or videos, to influence perceptions or opinions without the more evident distortions characteristic of deepfakes.

(ee) *Watermark Technology* refers to the method of embedding a visible or invisible mark, identifier, or metadata in digital content to indicate authenticity, origin, or ownership for purposes of ensuring the legitimacy of digital provenance.

SEC. 4. Use of the Internet and Social Media as Lawful Election Propaganda. - Election propaganda on the internet and the social media are hereby allowed for all candidates seeking national and local elective positions, subject to the limitation on authorized expenses of candidates and parties, observation of truth in advertising, and to the supervision and regulation by the COMELEC.

Social media posts, regardless of format, whether original or re-posted from some source, which may either be incidental to the poster's advocacies of social issues or which may have, for its primary purpose, the endorsement of a candidate only including paid advertisements in internet subject to the requirements set forth in Section 5 hereof and the Fair Elections Act shall also be allowed.

SEC. 5. Requirements and/or Limitations on the Use of Election Propaganda through Internet and Social Media. - The use of the internet and social media for purposes of election propaganda shall be allowed subject to the following limitations:

(a) Each registered political party/coalitions and candidate shall register with the Education and Information Department (EID) of the COMELEC, the website name and web address of all platform-verified official accounts, websites, podcasts, blogs and/or other social media accounts and pages of such political party or candidate within thirty (30) days from the last day of the period for the filing of the Certificates of Candidacy. Websites completing the verification process after the said period and other social media accounts established after the said period must be registered with the COMELEC-EID within five (5) days from its verification or registration;

(b) Any other website, blog, or social media page not registered above but which, when taken as a whole, has for its primary purpose the endorsement of a candidate, whether or not directly maintained or administered by the candidate or their official campaign representatives, shall be considered additional official websites, blogs or social media pages of the said candidate, for all regulatory purposes;

(c) Only the candidates and their authorized representatives, as well as authorized representatives of registered political parties/ coalitions, and party-list organizations, may submit their registration forms for their official social media accounts and pages, websites, podcasts, blogs/vlogs, and other online and internet-based campaign platforms.

(d) Any person or entity other than a candidate or political party, who shall create, or manage similar social media accounts and pages, websites, podcasts, blogs, vlogs, and other online and internet-based campaign platforms primarily designed or used during the election period to solicit votes and promote the election or defeat of a particular candidate or candidates, shall also submit the registration forms and comply with the requirements of this guidelines. Submission shall be made to the EID through the official online channels that will be provided by the COMELEC. In the event of failure to register, the concerned candidate, political party/ coalition, partylist organization, and their respective social media campaign managers, shall be required to explain why a complaint for violation of this Act should not be filed against them for their failure to register their social media accounts, websites, digital and internet-based campaign platforms in accordance with this Act. A request for the removal, takedown, or blocking of the said content, social media or digital platforms, or accounts shall also be made by the COMELEC to the technology platforms and providers, and/ or the concerned law enforcement agency.

(e) Only verified accounts, websites, blogs, and/or social media pages may run electoral ads, and boost or promote electoral posts;

(f) Microtargeting of electoral ads shall not be allowed: Provided, That electoral ads can be targeted using only the following criteria: geographical location, except radius around a specific location; age; and gender: Provided, further, That contextual targeting options may also be used in combination with the above-mentioned criteria: Provided, finally, That processing of personal data should comply with the provisions of Republic Act No. 10173 or the Data Privacy Act of 2012, its Implementing Rules and Regulations and related issuances of the National Privacy Commission;

(g) All electoral ads must show a disclosure that identifies who paid for the ad. All electoral posts must show a disclosure that identifies it as a paid electoral ad, and discloses who paid for the ad; and

(h) Information contained in online campaign propaganda shall be truthful and not misleading, nor shall it tend to unjustifiably cast doubt on the integrity of the electoral process.

SEC. 6. *Transparency and Disclosure Requirements on the Use of Artificial Intelligence Technology in Election Propaganda and Campaign Materials.* - The following transparency and disclosure requirements shall be observed on the use of artificial intelligence technology in election propaganda and campaign materials:

[i] All election propaganda and campaign materials of candidates and political parties, that utilize artificial intelligence technology shall be required to disclose the fact of its use and appropriate technology is employed to identify its authenticity and legitimate source.

[ii] Disclosures or disclaimers, which shall be clear, conspicuous, and not easily removed or altered, must remain visible or audible for a sufficient duration both before and after the campaign material is presented. The disclosure or disclaimer shall explicitly state that the content has been manipulated using artificial intelligence, providing a detailed explanation of the nature and extent of the manipulation. Additionally, it must include a statement confirming that prior consent has been obtained from all individuals depicted in the AI manipulated election material. The said disclosure shall be contained in the same campaign material and not in a separate file.

Any entity involved in distributing synthetic election-related media is also required to ensure that the media contains the necessary disclosures and disclaimers as mandated.

[iii] Once an online and digital platform that hosts election-related content has been notified by the COMELEC that media has been manipulated with artificial intelligence technology, they shall be required to implement reasonable mechanisms that disclose the same. Such disclosures must be clearly visible or audible to all audiences, ensuring that viewers or listeners are

adequately informed that the content has been altered in compliance with the requirements of these rules.

[iv] If the COMELEC detects the use of artificial intelligence technology in any campaign material disseminated or published through the social media accounts without any proper disclosures or use of watermark technology as required by the COMELEC, the concerned candidate or party, and their respective social media campaign managers, shall be required to explain why a complaint for violation of these rules should not be filed against them.

A request for the removal, takedown, or blocking of the said content, social media or digital platforms, or accounts shall also be made by the COMELEC through the to the technology platforms and providers, and/or the concerned law enforcement agency.

SEC. 6. Regulation of Election Propaganda through Internet and Social Media. - In all instances, the COMELEC shall supervise the use and employment of online facilities insofar as the placement of political advertisements is concerned to ensure that candidates are given equal opportunity under equal circumstances to make known their qualifications and their stand on public issues within the limits set forth in the Omnibus Election Code, the Fair Election Act, and appropriate rules.

SEC. 7. Prohibited Acts Involving Misuse of Social Media, Artificial Intelligence and Internet Technology in Digital Election Campaign. - The following acts, by any individual, shall be considered misuse and malicious use of social media, artificial intelligence, and internet technology, and may constitute an election offense under Section 261 (z) (11) of the OEC, if committed for purposes of propagating disinformation and misinformation to endorse or campaign against a candidate, a political party/ coalition, and party-list organizations, and for propagating disinformation or misinformation against the Philippine election system, the COMELEC, and the electoral processes in the Philippines during the election and campaign period:

- (1) Use of "false amplifiers", such as fake accounts, bots, and astroturf groups filled with fake users to propagate disinformation and misinformation in endorsing or campaigning against a candidate, a political party/coalition, or party-list organizations, or to propagate disinformation, and misinformation targeting the Philippine election system, the COMELEC, and electoral processes during the election and campaign period;
- (2) Coordinated inauthentic behavior and utilization of hyperactive users for the aforementioned purposes;
- (3) Creation and dissemination of deepfakes, cheapfakes, and soft fakes for the aforementioned purposes;
- (4) Use of fake and unregistered social media accounts during the election and campaign period for the same purposes;
- (5) Creation and dissemination of fake news in furtherance of the aforementioned purposes; and
- (6) Use of content produced through AI technology but without compliance to the transparency and disclosure requirements under these guidelines.

SEC. 8. Procedures Upon Detection of Prohibited Acts. - Once the prohibited misuse of social media, artificial intelligence technology, and internet technology is reported to, detected, and monitored by the

COMELEC, through its own initiative and monitoring, or through the aid of deputized law enforcement agencies and government instrumentalities, the following shall be immediately undertaken:

- (1) Gathering, documenting, recording, and preserving evidence by the COMELEC;
- (2) Initial validation and investigation of reports, complaints, or detections of the prohibited acts under these rules;
- (3) Issuance of a show cause order to the alleged perpetrator, registered candidate, political party/ coalition, party-list organization, and their respective social media campaign managers;
- (4) Motu proprio filing of an election offense complaint before the Law Department against the Respondent;
- (5) Submission of a request to the technology platform or internet service provider, or a complaint to the National Telecommunications Commission (NTC), Cybercrime Investigation and Coordinating Center (CICC), the NBI Cybercrime Division, the MTRCB, and other relevant government agencies, with a demand for the takedown of the subject content, and the erring social media account, website, or broadcast.

A request to the technology platform shall contain, among others:

- (a) the specific provision of the Guidelines violated;
 - (b) specific internet addresses, Uniform Resource Locators (URLs) or cyber addresses on the web, websites, or any contents to be blocked, removed, or taken down;
 - (c) name and signature of the authorized COMELEC official submitting the request; and
 - (d) such other facts as may be necessary to justify the request for takedown;
- (6) In case of a possible violation of other laws such as, but not limited to, Republic Act No. 10173 (Data Privacy Act of 2012), Republic Act No. 10175 (Cybercrime Prevention Act of 2012), or the refusal of the concerned technology platform to comply with the demand of the COMELEC to stop the continued disinformation or misinformation, a complaint shall be referred to the relevant agencies for appropriate action; and
- (7) The immediate debunking of fake news published and disseminated against the Philippine election system, the COMELEC, or the electoral processes, shall also be undertaken through publication by the EID in the official COMELEC website and social media platforms.

SEC. 9. *E-rallies and Livestreams Allowed.* - Any political party or any candidate, individually or jointly with other aspirants, may hold peaceful online political meetings, rallies or other similar activities during the campaign period. Such online political meetings, rallies, and similar activities are not covered by the limitations on broadcast advertising.

Live streaming on the candidates' social media platforms shall be considered a form of e-rally, subject to the following rules:

- (a) All e-rallies shall include a disclosure that identifies it as a political meeting or rally and providing the relevant date, time, and location information. For this purpose, a live stream on the candidate's social media platforms shall be considered a political meeting or rally;
- (b) Recordings of e-rallies shall be submitted to the COMELEC within 72 hours from the airing of the same; and

- (c) Candidates may receive in-platform gifts and game currency but shall not be allowed to give gifts to livestream audiences, nor to run promotions and campaigns that will award in platform gifts or game currency to platform users and livestream audiences.

SEC. 10. *Prohibition on the Regulation of Legitimate Expressions by Private Individuals.* - The COMELEC is hereby mandated to regulate expressions of candidates and political parties but shall not in any manner include legitimate expressions by private citizens.

Public expressions or opinions or discussions of probable issues in an election or on attributes of or criticisms against candidates shall not be construed as part of any election campaign or partisan political activity.

SEC. 11. *Reporting Requirements to be Submitted by Contractors and Business Firms.* - Certified true copies of all contracts, reports and receipts, and other documents, accompanied by all its digitization copies, shall be submitted by contractors and business firms to the COMELEC.

Every content creator of a post, owner or administrator of any website who airs or shows the political advertisements, without the required data or having false information, in violation of this Act shall be criminally liable with the candidate under Sec. 264 of the Omnibus Election Code and, if applicable, suffer the penalties of suspension or revocation of franchise or permit in accordance with law.

Within thirty (30) days after the conduct of the election, every person or firm to whom any payment for electoral expenditure has been made shall file a written report using the prescribed form which shall contain the following information, and accompanied with the official receipts issued to the person with whom the contractor or business firm had transacted:

- i. The full name of the candidate who incurred such expenditures;
- ii. The nature or purpose of each expenditure;
- iii. The description of the goods or services provided by the contractor or business firm;
- iv. The date when the expenses were incurred;
- v. The amount or cost thereof; and
- vi. The serial number of the official receipt, cash invoice, or other Bureau of Internal Revenue-approved document issued.

Reportorial requirements shall apply to all contractors and business firms transacting or doing business in the Philippines, whether or not incorporated under the Philippine laws.

Social media associates, including paid digital influencers and online content creators, who use social media platforms to promote or defeat the election of any candidate, are considered individual contractors subject to reportorial requirements under this Act.

Agencies and other intermediaries between the entities producing and placing online political advertisements and the candidate, political party or party-list group shall also submit a similar report.

Within the period provided by law, internet companies which include social media companies, transacting or doing business in the Philippines, whether or not incorporated under the Philippine laws, which a candidate or party utilize to directly reach out to voters and mobilize support through the use of ads, paid promoted hashtags/trends, shall provide the COMELEC of the information or documents containing the following:

- i. The name of the candidate or party in the advertisement;

- ii. The name of the person or advertising agency/public relations firm who paid the advertisement;
- iii. Page Name or Account Name or Handle where the advertisement was posted, originated, or uploaded;
- iv. The particulars of the political advertisement; and
- v. The amount or cost of the advertisement

SEC. 12. *Election Offense.* - Any violation of the provisions of this Act shall constitute an election offense punishable under the first and second paragraph of Section 264 of Batas Pambansa Blg. 881, otherwise known as the Omnibus Election Code of the Philippines, and other pertinent laws, rules and regulations, whenever applicable. The COMELEC shall, through its duly authorized legal officers, have the power, concurrent with other prosecuting arms of the government, to conduct preliminary investigation of all election offenses and prosecute the same.

SEC. 13. *Right of Reply.* - Any candidate or person accused of violating any provision of this Act shall be given the right of reply.

SEC. 14. *Authority of the COMELEC to Promulgate Rules.* - The COMELEC shall promulgate and furnish all political parties and candidates and all concerned entities the rules and regulations for the implementation of this Act, consistent with the criteria established in Article IX-C, Section 4 of the Constitution and Section 86 of the Omnibus Election Code.

Rules and regulations promulgated by the COMELEC under and by authority of this Section shall take effect on the seventh day after their publication in at least two (2) daily newspapers of general circulation. Prior to the effectivity of said rules and regulations, no political advertisement or propaganda for or against any candidate or political party shall be published or broadcast through the internet and social media.

SEC. 15. *Separability Clause.* - In case any provision of this Act is declared invalid or unconstitutional, such declaration shall have no effect in the validity or constitutionality of the remaining provisions hereof.

SEC. 16. *Repealing Clause.* -All laws, decrees, rules and regulations inconsistent with the provisions of this Act are hereby repealed or amended accordingly.

SEC. 17. *Effectivity.* - This Act shall take effect fifteen (15) days its after publication in the Official Gazette or in a newspaper of general circulation.

Approved,